

25PSCV02953 25PSCV02953

County: los-angeles

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Case Number: 25PSCV02953 Hearing Date: August 3, 2026 Dept: G

Petitioner

Jose Moreno's Petition for Expedited Approval of Compromise of Claim or Action
or Disposition of Proceeds of Judgment for Plaintiff/Claimant Jacob Moreno, a
Minor

Respondent:

NO OPPOSITION

TENTATIVE

RULING

Petitioner

Jose Moreno's Petition for Expedited Approval of Compromise of Claim or Action
or Disposition of Proceeds of Judgment for Plaintiff/Claimant Jacob Moreno, a
Minor is GRANTED.

BACKGROUND

This

is a personal injury action involving a minor arising from a dog bite. On July 12, 2024, a German shepherd dog owned by defendant Francisco Ramirez (Ramirez) allegedly ran into the street to attack plaintiff Jacob Moreno, a minor.

The dog allegedly bit Moreno on his lower extremity, tearing skin and underlying tissue and requiring immediate medical attention. Ramirez allegedly called the dog back into his house after the attack.

On

August 14, 2025, Jacob Moreno, by and through his guardian ad litem petitioner Jose

Moreno, filed the Complaint, alleging causes of action for (1) strict liability, (2) negligence, and (3) negligent infliction of emotional distress.

On June

3, 2026, the parties informed the court that they settled the case. On June 8, 2026, Jose Moreno filed this petition for expedited approval of minor's compromise, which is unopposed. On July 2, 2026, the court set the petition for hearing.

This

case is set for an order to show cause re: dismissal (settlement) and a hearing on the petition on August 3, 2026.

ANALYSIS

Jose

Moreno seeks the court's approval of a \$8,000.00 settlement reached between all parties. For the following reasons, the petition is GRANTED.

Legal

Standard

An

enforceable settlement of a minor's or incompetent's claim can only be consummated with court approval. (Prob.

Code, §§ 2504, 3500, 3600 et seq.; Code Civ. Proc., § 372.) For this purpose, a petition for approval must be presented to the court, and until it is granted, there is no final

settlement. (*Scruton v. Korean Air*

Lines Co. (1995) 39 Cal.App.4th 1596, 1603–1606.) Any settlement agreement therefore is voidable by the minor's guardian ad litem.

(*Id.* at 1606.)

Probate

Code section 3600 et seq. governs how the settlement proceeds are to be paid. Pursuant to Probate Code section

3601, the order shall approve payment of reasonable expenses from the settlement as follows:

The

court making the order or giving the judgment referred to in Section 3600, as a

part thereof, shall make a further order authorizing and directing that such reasonable expenses (medical or otherwise and including reimbursement to a parent, guardian, or conservator), costs, and attorney's fees, as the court shall approve and allow therein, shall be paid from the money or other property to be paid or delivered for the benefit of the minor or incompetent person. (Prob. Code, § 3601, subd. (a).)

In

cases pursuant to Probate Code section 3601, "unless the court has approved the fee agreement in advance, the court must use a reasonable fee standard when approving and allowing the amount of attorney's fees payable from money or property paid or to be paid for the benefit of a minor or a person with a disability." (Cal. Rules of Court, rule 7.955(a)(1).) In doing so, "[t]he court must give consideration to the terms of any representation agreement made between the attorney and the representative of the minor or person with a disability and must evaluate the agreement based on the facts and circumstances existing at the time the agreement was made, except where the attorney and the representative of the minor or person with a disability contemplated that the attorney's fee would be affected by later events." (Cal. Rules of Court, rule 7.955(a)(2).)

Discussion

Pursuant

to the settlement agreement reached between the parties, Ramirez agrees to pay a total of \$8,000.00 to Jacob Moreno. (See Pet., ¶ 11.) The petition requests that \$1,549.92 be used for medical expenses, \$2,000.00 be used for attorney's fees, \$1,075.18 for other expenses, and \$3,374.90 for Jacob Moreno. (See Pet., ¶¶ 13–17.)

"In

determining whether to grant a guardian ad litem's petition to approve a settlement of the ward's claims, a court must determine whether it is reasonable and in the minor's best interest."

(Chui v. Chui (2022) 75 Cal.App.5th 873, 899.) Generally, courts must consider the following factors: 1) the circumstances of the accident or other incident giving rise to the litigation, particularly the facts bearing on the payor's potential liability and the minor's damages; 2) the amount of the proposed settlement; 3) how the settlement will be paid (e.g. in a lump sum or via an annuity); 4) the nature of the injury and the minor's current medical status and prognosis; and 5) the amount of attorneys' fees and other transaction costs being

requested. (See, e.g., Kostakos v. Holewinski (Dec. 6, 2019, 37-2018-00029286-CU-PA-CTL) [nonpub. opn.], applying Cal. Rules of Court, rule 7.950.)

Regarding

medical expenses, the petition reflects that Kaiser Foundation Health Plan, Inc. (Kaiser) charged \$2,662.00. (See

Pet., ¶¶ 13a(1)–13a(2); see also Pet., Attach. 13a.) The negotiated reduction was \$1,112.08, and Kaiser seeks reimbursement for the remaining \$1,549.92. (See Pet., ¶¶ 13a(3)–13a(4), 13d.) Based on this information, the court finds

that the requested medical expenses are properly accounted for.

As

for attorney's fees, Jose Moreno executed a retainer agreement with Jacob Moreno's counsel for a 40% contingency fee if the case settled during litigation. (See Pet., Attach. 14a, Contingency Fee Retainer Agreement, ¶ 2b.)

The requested attorney's fees are 25% of the gross settlement amount. (See Pet., ¶ 14a.) Counsel's declaration includes details about their work in this litigation. (See Pet., Attach. 14a, Liao Decl., ¶ 5.)

Considering this evidence, the court finds the requested attorney's fees are reasonable.

Additionally,

the petition reflects litigation costs of \$1,075.18. (See Pet., ¶ 14b.) Upon review, the court finds that the litigation costs were reasonably incurred.

The

remaining \$3,374.90 for Jacob Moreno will be deposited in insured accounts in a financial institution in this state, subject to withdrawal only on authorization of the court. (See Pet.,

¶ 19b(2); see also Pet., Attach. 19b(2).) Upon review, the court finds the amount awarded to Jacob Moreno to be reasonable and finds the disposition of the funds is proper.

Accordingly,

the petition to confirm minor's compromise is GRANTED.

CONCLUSION

For

these reasons, the petition for expedited approval of minor's compromise is GRANTED.

The

court intends to set an OSC re: PROOF OF DEPOSIT OF FUNDS INTO BLOCKED
ACCOUNT for a date thirty (30) days out.